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Mr Stephen COOKE
7A Bakeri Cct
WARABROOK NSW 2304

Our Reference: 712 418 500 816

8 November 2025

31425/19215 7075/1 MX14-1:49990150699969

Dear Stephen

Objection decision reached

We are writing to advise you that we have disallowed the recent objection to the decision to refuse to reflect the care of Christian and Joshua as 42% to Stephen and 58% to Heather from 4 February 2025.

The details of this decision are enclosed.

What this means for you

Your child support is still receivable at the current rate.

If you do not agree with this decision

If you think this decision is wrong, you can ask the Administrative Review Tribunal (ART) to review it. You must do this **within 28 days** from the date you receive this letter. You can contact the ART by going to their website **art.gov.au** or calling them on **1800 228 333**.

You can use online services at any time. Go to **servicesaustralia.gov.au/childsupportonline**

For more information about child support, including collection and transfer of payments, support services and payments for families, please go to **servicesaustralia.gov.au/childsupport**

Yours sincerely

Delegate or authorised officer of
the Child Support Registrar

Encl.

Details of Objection Decision

Details of Objection Decision

Objection lodged by: Stephen Cooke
Respondent: Heather Cooke
Child Support case number: 499901510
Date of original decision: 25 February 2025
Date objection lodged: 25 February 2025
Date of objection decision: 8 November 2025

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SUMMARY OF OBJECTION DECISION

The outcome of this decision is that it has been disallowed.

We have made the decision to refuse to reflect the care of Christian and Joshua as 42% to Stephen and 58% to Heather from 4 February 2025.

The effect of the objection decision is: There is no change to the assessment.

DECISION UNDER REVIEW

The decision to refuse to reflect the care of Christian and Joshua as 42% to Stephen and 58% to Heather from 4 February 2025.

Stephen has objected to this decision because "I object to the percentage of care used in the child support assessment, as it does not reflect the care arrangements per the Federal Circuit and Family Court orders dated 23 April 2024. The correct percentage should be based on my court-ordered care schedule."

In considering this objection, a full merit review of the original decision has been conducted.

This means that we have examined and evaluated all the relevant information in order to reach a conclusion based on the relevant facts of the case and how the law is applied to those facts.

You can find more information in The Child Support Guide (our online guide to administration of the Child Support Scheme) by going to guides.dss.gov.au/child-support-guide and refer to chapter 2 and 4.

WE CONSIDERED THE FOLLOWING EVIDENCE IN THE DECISION
Stephen and Heather have had a registered child support case for Christian and Joshua since 4 February 2025.

On 17 February 2025, Stephen lodged a change in care for Christian and Joshua as 42% to Stephen and 58% to Heather from 4 February 2025.

Details of Objection Decision

On 25 February 2025, we made the decision to refuse to reflect the care for Christian and Joshua as 42% to Stephen and 58% to Heather from 4 February 2025.

We issued letters to both parents, advising them of the decision and their objection rights.

On 25 February 2025, Stephen objected to this decision.

On 6 October 2025, we spoke to Heather in relation to this objection and Heather chose not to participate in the objection process.

REASONS FOR THE DECISION

In order to make a decision to change the record of care for a child, we must first be satisfied that there has been a change to the ongoing pattern of care (section 49 and 50 of the Child Support (Assessment) Act 1989).

The percentage of care is the mechanism used in the child support assessment formula to take into account the amount of time a parent or non-parent carer is responsible for providing care for the child.

Care will generally be worked out based on the number of nights that the child is likely to be in the care of the person during the care period.

On review of the original decision, we can confirm that the decision was applied correctly to our records, and this was reflected in the assessment correctly. The care was recorded as per the court order and agreed by both parents.

In order to make a contrary decision, we would require either, both parties agreeing to the objection details lodged, or be satisfied via sufficient evidence that is supporting the details of the objection application.

As both parties have not agreed verbally to the objection details, we will refer the evidence provided by both parties.

In this case, either parent has not provided relevant evidence, therefore we are unable to make a contrary decision. We cannot consider a court order alone as we would require evidence to support this care occurring in adherence with the court order.

Therefore, we have made the decision to refuse to reflect the care of Christian and Joshua as 42% to Stephen and 58% to Heather from 4 February 2025.

The objection is disallowed.

General Manager

Child Support Smart Centres